Hudson City School District Policy 8636: Data and Student Privacy Passages

Excerpted verbatim from *Policy #8636 Artificial Intelligence (Hudson City School District, New York; adopted December 16, 2025)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text.

Guidelines (excerpt)

Source: page 2

Student use of district-approved AI tools, in school, through district devices or networks, or for educational purposes, must adhere strictly to Education Law 2-d requirements. Instructional staff should collaborate with the district's Data Protection Officer to verify compliance. Staff must remain aware of differences among AI tools regarding age restrictions and privacy assurances. Any student use of AI in schools, on school networks/computers, or for school purposes must be compliant with Education Law 2-d and its regulations, particularly whenever student Personally Identifiable Information is disclosed, including third-party agreements where applicable. Staff must consult with the district's Data Protection Officer to determine compliance with Education Law 2-d. Staff must also be mindful that some AI tools are free and others are not, that some AI tools are not permitted to be used by those under certain ages, or require parent permission.

The district will prioritize selecting AI tools that specifically:

- Comply fully with Education Law 2-d, including required privacy assurances and agreements from AI providers.
- Allow instructional staff meaningful monitoring capabilities to promote responsible use and student accountability.

Employees remain responsible for reviewing all AI-generated outputs and ensuring compliance with district policies on confidentiality and intellectual property.

Requirements

Source: page 3

Information input into AI platforms may potentially be stored, accessed, or redistributed by the system. Therefore, district users must avoid inputting sensitive, confidential, proprietary, or copyrighted materials into AI platforms unless the AI provider explicitly confirms compliance with Education Law 2-d and guarantees that input information will not be reused for future AI model training, as well as other standard compliance factors including how information is stored and transmitted on the servers that host the platform or service. These would follow the same standards and practices in place for other online and digital services that students and faculty currently use. There may be some cases where a teacher or staff would have to consider the appropriateness of a given AI tool, as one case may be better suited for brainstorming learning activities that align with state standards but not sufficient for entering student work to be analyzed for mistakes or inconsistencies, whereas another tool may provide the necessary assurances for such a task.

Protected information includes but is not limited to:

- Student information: anything that would be protected by FERPA (see policy 5500) or Education Law 2-d (see policy 8365).
- Staff information: anything that would be protected by Education Law 2-d (see policy 8365), or other confidential personnel information.
- School district information: anything that would be withheld from a Freedom of Information Law (FOIL) request (see policy 1120).

Cross-references (excerpt)

Source: page 3

- 5500, Student Records
- 8635, Information and Data Privacy, Security, Breach and Notification
- Family Educational Rights and Privacy Act, as amended, 20 USC 1232g; 34 CFR Part 99